



U.S. Department
of Transportation

Research and
Special Programs
Administration

OCT 31 1995

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11033
(FIRST REVISION)

EXPIRATION DATE: October 31, 1997 for Witco Corporation and November 30, 1995 for PTE-1

(FOR RENEWAL, SEE 49 CFR SECTION 107.105)

1. GRANTEE: Witco Corporation, Houston, Texas
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of certain compressed gas mixtures (stack gas) in DOT 3AAX cylinders mounted as a tube trailer. This exemption provides no relief from any regulation other than as specifically stated herein. The following company(s) is hereby granted party status to this exemption:

Engineering Resources, Inc., Fayetteville, AR - PTE-1
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.302(a)(3).
5. BASIS. This exemption is based on Witco Corporation's application dated September 26, 1995, submitted in accordance with 49 CFR 107.105. The granting of party status is based on the following application submitted in accordance with 49 CFR 107.111 and the public proceeding thereon.

Engineering Resources, Incorporated's application dated May 27, 1993.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/ Division	Identification number	Packing Group
Compressed Gas, flammable, n.o.s (containing the following gases in appropriate volume fraction listed: Nitrogen (59.68), Hydrogen (20.89), Carbon monoxide (14.06), Carbon dioxide (3.56), Acetylene (1.02), Methane (0.66), Hydrogen sulfide (0.09), Carbon disulfide (0.02), Sulfur dioxide (0.01), Nitrogen dioxide (46 ppm), Water (300 ppm), and carbonyl disulfide (13 ppm)).	Division 2.1	UN 1954	N/A

7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - Packagings prescribed are DOT-3AAX Specification cylinders (49 CFR 178.37) with a marked service pressure of not less than 1800 psig and not more than 2800 psig, manifolded in accordance with 49 CFR 173.301(d)(2). A safety relief device is required on each cylinder. The cylinders must be securely mounted on a motor vehicle configured as a tube trailer.

- (1) Cylinders may only be made of 4130X grade steel.
- (2) The maximum shipping pressure shall not exceed 1000 psig.
- (3) The composition and hazard class of the stack gas must be checked periodically to assure conformance to the composition prescribed in this exemption.
- (4) The dew point of the gas at the shipping pressure shall be no higher than 23 degrees fahrenheit.

- (5) After each 10 cycles, the cylinders shall be thoroughly purged of stack gas with dry nitrogen gas.
- (6) When periodic retest is due or after each 200 cycles, whichever comes earlier, each cylinder must be inspected and requalified per 49 173.34(e) for DOT 3AAX cylinders.

c. MARKING - Each tube trailer must be marked on the right side near the front, in letters at least 2 inches high on a contrasting background "DOT-E 11033"

8. SPECIAL PROVISIONS.

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

9. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Hazardous Materials Transportation Act:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.106 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure or any cylinder cracking to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

10-31-95

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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